
Minutes of the Full Council Meeting

Date & Time: Wednesday, 21 January 2026 at 7:00 pm

Place: The Council Chamber, Town Hall, Ripley

Present:

Councillor S Marshall-Clarke (Mayor)

Councillors: M R Allwood, F Atkinson, B R E Bellamy, N A Beswick, S Bower, A Burslem, D Chambers, K Cox, L D Cox, G G Dolman, C Emmas-Williams, E Hamilton, T Harper, T Hill, Trevor Holmes, M G Jones, G Kinsella, P E Lobley BEM, E R Long, A J McDermott, E L Monkman, M Murray, J Orton, A L Paget, L Pizzey, J C Porter, P S Rose, E Sherman, K Smith, D H Taylor, J A Walls, J I Ward, J Whitmore, D A Williams, M Wilson and K M Wood.

Officers present: L Gardner – Borough Solicitor and Monitoring Officer, S Gladwin – Chief Executive, H Middleton-White – Communications and Performance Manager, A Steeples – Democratic Services Officer (Cabinet and Council), W Sutton – Corporate Director of Resources (Chief Financial Officer) and L Webb – Democratic Services Officer.

Apologies:

Councillors: T M Ainsworth, S A Hayes, Tony Holmes, J Kerry and J Powis.

Prior to the start of the meeting, prayers were said by Reverend Helen Thake.

5248 MAYOR'S ANNOUNCEMENTS

The Mayor was pleased to announce that his charity raffle had raised £1,030 for Derbyshire Children's Holiday Centre in Skegness. He added that the Council had raised in excess of £9,000 so far for the Charity and that his target amount was a minimum of £10,000.

The Mayor then reminded those present that his Civic dinner would be taking place on 14 March 2026 at Horsley Lodge and that all were welcome.

The Mayor then welcomed Councillor Dave Chambers to the meeting, who was elected today following the Count for the Codnor, Langley Mill & Aldercar ward of the Borough Council.

5249 VARIATION OF ORDER OF BUSINESS

No variation to the order of business, as set out on the agenda, was made.

5250 DECLARATIONS OF INTEREST

There were no declarations of interest given by Members at this point in the meeting.

5251 PUBLIC SPEAKING - SUMMARY

Mr J Wheeler spoke on behalf of residents of Dean Street in Langley Mill with regard to serious safety concerns about the proposed footpath linking their street to the Wheeldon Brothers development (planning application AVA/2021/0611). He reported that the carriageway was narrow, with congestion constant and vehicles having to mount the pavement to pass each other. He stated that residents, including children, the elderly and parents with pushchairs were forced into the carriageway which was a serious risk. He added that the footpath entrance at the top of Dean Street saw vehicles regularly turn around and that a safe pedestrian access point was needed, before quoting Section 41 of the Highways Act 1980 and Section 122 of the Road Traffic Regulation Act 1984, which stated that the Council had a duty to secure the safe movement of traffic and pedestrians. He reported that the current layout failed these tests, with the no turning point sign ignored and repeated damage to property. He then stated that the proposal would increase footfall and further increase collision risk, before requesting that the proposal be paused whilst consultation take place with residents.

The Mayor responded to say that if Mr Wheeler could provide the Officer with the information, the Borough Council could get in touch with the County Council (as the Highways Authority).

The Chief Executive clarified that the County Council had approved the layout including the footpath and that the Borough Council was not in a position to challenge the County, as the Borough was reliant on County's Highways expertise.

5252 MINUTES OF PROCEEDINGS OF THE FULL COUNCIL MEETING HELD ON 26 NOVEMBER 2025

RESOLVED:

That the Minutes of the Full Council meeting held on 26 November 2025 be confirmed as a correct record and signed by the Mayor.

5253 EXCLUSION OF THE PUBLIC

There was no exclusion of the public.

5254 REPORT OF THE LEADER OF THE COUNCIL

The Leader of the Council was pleased to announce that by early next week, the Council would begin the online marketing of the community space within The Grammar at Heanor, with the bookings portal opening from 2 February to Groups for them to hire the space. The Leader then clarified that the community space included the main hall, meeting room and kitchen, which would be available to hire seven days a week, both during the day and in the evening.

The Leader then reported that he had received an invitation to attend the Annual General Meeting of Trilogy Active on 27 November, followed by a visit to Belper Leisure Centre to look at the transformation which he stated had made such a difference and was a fantastic change, with the Centre delivering new programmes including youth camps and working with the Amber Valley Schools Partnership team.

The Leader concluded his report by saying that he was pleased to have been part of the rescue team who made the responsible decisions after Belper Leisure Centre went into administration and that the site was now fully integrated into Trilogy Active, who had just won the best centre award for all their sites.

5255 MEMBERS' QUESTIONS TO THE LEADER ON THE REPORT

No questions were raised, although the following comments were made:

Councillor Trevor Holmes thanked the Leader for the update on The Grammar, which he believed people would welcome, whilst also stating that he thought it was a pity that the community couldn't have the whole building.

The Mayor thanked the Leader for the report and stated he was hoping to hold an event at The Grammar to support it, which he said was a fantastic building.

DELIVERING HIGH QUALITY AND VALUE FOR MONEY SERVICES:

5256 COUNCIL TAX BASE 2026/27

The Council considered a report informing members of the requirement of the Borough Council, as a Billing Authority, to calculate the Council Tax base for the Borough as a whole and for the individual parishes and areas within the Borough. A summary of the properties in the Borough was enclosed as Appendix A to the Officer's report, which set out the numbers in each Council Tax band of dwelling, properties subject to discounts and exemptions and properties subject to disabled person's relief.

RESOLVED:

- 1 That the report for the calculation of the Council Tax Base for the whole and parts of the area for the year 2026/27 be approved; and
- 2 That pursuant to the report, and in accordance with the Local Authorities (Calculation of Council Tax Base) (England) Regulations 2012, the amount calculated by Amber Valley Borough Council as its Council Tax Base for the year 2026/27 shall be 42,825.85 and for the various areas shall be the amounts listed as follows:

Area	2026-27 Council Tax Base
Note: Riddings is an unparished area	
Aldercar & Langley Mill	1,433.70
Alderwasley	217.49
Alfreton	2,455.29
Belper	7,475.81
Codnor	1,118.20
Crich	1,499.27
Denby	773.86
Dethick, Lea & Holloway	457.97
Duffield	2,231.91
Hazelwood	195.59
Heanor & Loscoe	4,864.26
Holbrook	609.69
Horsley	284.53
Horsley Woodhouse	426.20
Idridgehay, Alton & Ashleyhay	255.69
Ironville	442.73
Kedleston	24.50
Kilburn	1,123.05
Kirk Langley	468.76
Mackworth	553.59
Mapperley	100.75
Pentrich	116.76
Quarndon	827.43
Ravensdale Park	13.03
Riddings	1,308.54
Ripley	7,036.61
Shipley	471.00
Shottle & Postern	147.00
Smalley	1,320.87
Somercotes	1,591.33
South Wingfield	634.62
Swanwick	1,883.77

Turnditch & Windley	278.04
Weston Underwood	184.01
TOTAL	42,825.85

REASON FOR DECISIONS:

As a Billing Authority, the Borough Council is required to calculate the Council Tax Base for the Borough and the individual parishes and unparished areas, in accordance with the relevant statutory requirements.

5257 COUNCIL TAX SUPPORT SCHEME 2026/27

The Council considered a report seeking approval for the continuation of the local Council Tax Support Scheme for the financial year 2026/27.

RESOLVED:

- 1 That the following be approved as Amber Valley Borough Council's Local Council Tax Support Scheme from 1 April 2026:
 - a) That working age claimants can continue to receive full help towards their Council Tax if they are on a low income, in the same way as pension age claimants, with no reduction to be applied.

REASONS FOR DECISION:

- 1 The scheme proposed for year 2026-2027 would maintain the amount of assistance given to working age claimants in receipt of Council Tax Support, so that the calculation matches the calculation that was in place under the previous Council Tax Benefit scheme. This will mean that from 1 April 2026, working age claimants can receive full help towards their Council Tax if they are on a low income, in the same way as pension age claimants.
- 2 Approximately 8,400 Council Taxpayers across the Borough receive assistance towards their Council Tax Bills due to low income. The Welfare Reform programme has meant that since 2013, those of working age have received less help than those of pension age. Many working age claimants have also been affected by other welfare reforms which have reduced entitlement to Housing Benefit in some cases. Those making new claims for help with housing costs now need to claim Universal Credit, which has been problematic in some cases. Increasing energy bills and the general cost of living have put added financial pressures on all.
- 3 A continuation of the scheme to maintain the assistance given to working age Council Tax Support recipients will be of financial benefit to approximately 5,200 residents of the Borough: these residents

being those with the lowest incomes across the Borough. The change will also bring parity between awards made to working age claimants and those made to pension age claimants.

- 4 Although maintaining the scheme to reduce the amount that those in receipt of Council Tax Support are asked to pay will have a financial impact on the Borough Council and its preceptors (Derbyshire County Council, the Police Authority, the Fire Authority and the Parish Councils), as the additional cost of acting in such a manner would need to be met locally, the hardship experienced by some payers was recognised and this change would alleviate some of this hardship experienced by those members of the Borough on the lowest income.
- 5 Full Service Universal Credit was introduced across Amber Valley from June 2018. Until the migration of current Housing Benefit cases to Universal Credit is completed Councils will still be administering Housing Benefit schemes. The proposed Council Tax Support scheme would continue to largely mirror the current Housing Benefit scheme, as far as the calculation of entitlement is concerned, which would reduce complexity and confusion for those claiming and administering both awards. The amounts used in the calculation of awards in the scheme for 2026-2027 will be up-rated in the same manner as those up-ratings which apply to the Housing Benefit scheme.
- 6 The introduction of Universal Credit has been problematic across the country. To try and alleviate some of the problems experienced by Universal Credit recipients in claiming Council Tax Support, the Council Tax Support scheme has some flexibility associated with the claim making process for Universal Credit recipients, which will make it more likely that they will be awarded assistance for the periods they are in receipt of Universal Credit.
- 7 Regarding difficulties experienced by some council taxpayers, each case is judged on its merits and the Council Tax Section has the flexibility to suspend recovery action, write off or reduce a debt based on the individual circumstances of the case.

5258

STRATEGIC MANAGEMENT STRATEGY STATEMENT AND ANNUAL INVESTMENT STRATEGY – MID YEAR REVIEW REPORT 2025/26

The Council considered the Treasury Management Strategy Statement and Annual Investment Strategy – Mid Year Review Report 2025/26, in accordance with the requirements of the Chartered Institute of Public Finance and Accountancy (CIPFA) Code of Practice on Treasury Management (revised 2021).

The report updated Members on the latest position of the capital programme and any consequential impact on the Authority's Capital Financing Requirement (CFR).

The Officer's report also contained a number of appendices for consideration, including a Mid -Year Treasury and Capital Review report, MUFG Monthly Investment Analysis Review, Variations to the 2025/26 Capital Programme and the Capital Programme 2025/26.

Councillor C Emmas-Williams moved recommendations 2.1 and 2.2 of the Officer's report, to include a correction of a typo with recommendation 2.2 (to include the missing letter 's' in 'set'). This was seconded by Councillor E L Monkman.

Councillor J A Walls thanked Officers for the comments column in the appendices regarding the Capital Programme, which he said was helpful and informative.

Councillor G Kinsella made reference to Appendix D and the total slippage of £8.7 million and asked whether this was due to Officer capacity and also, how much of the slippage, if any, related to external funding with a deadline that could risk the loss of funding due to slippage. Councillor C Emmas-Williams reported that there was some issue with Officer capacity, which was not a quick fix and that Local Government Reorganisation was an issue. The Chief Executive reported that additional support had been brought in to accelerate particular projects, for example, the purchase of food waste vehicles and that he was not aware that any external funding had needed to be returned in recent years.

Councillor A J McDermott made reference to the slippage on Disabled Facilities Grants due to the handover from the County Council and time for new processes to be transferred, which she stated raised alarms bells for Local Government Reorganisation, as this was impacting people waiting for adaptations. She then asked if the Cabinet Member could let her know what oversight they'd had on the slippage and what could be done to speed things up. Councillor M R Allwood responded to say that the transition of the service from County was not as smooth as anticipated and that the Borough Council was getting there. The Chief Executive reported that the Borough Council had recruited its own Design team and had looked at ways to streamline processes and develop the relationship with Futures Housing Group.

RESOLVED:

- 1 That the treasury activities undertaken during the financial year to date be noted; and
- 2 That the variations to the Capital Programme, as set out in Appendix C to the Officer's report, be approved.

REASONS FOR DECISIONS:

- 1 The Prudential Code was developed by the Chartered Institute of Public Finance and Accountancy (CIPFA), as a professional code of practice to support local authorities in taking capital investment decisions. Local authorities were required by regulation to have regard to the Prudential Code when carrying out their duties under Part 1 of the Local Government Act 2003.
- 2 The objectives of the Prudential Code were to ensure, within a framework, that capital expenditure plans were affordable, prudent and sustainable, and that treasury management decisions were taken in accordance with good professional practice and in full understanding of the risks involved, and how these risks will be managed to levels that were acceptable to the Council.
- 3 To demonstrate that local authorities have fulfilled these objectives, the Prudential Code set out the indicators which must be used, and the factors that must be taken into account.
- 4 The Officer's report, where necessary, updated the previously approved indicators, taking into account changes to the Council's proposed spending plans, availability of resources and any amendments to the borrowing or investment strategy.
- 5 The Officer's report provided Members with an opportunity to review the key treasury management activities undertaken during the current financial year, in accordance with current financial stewardship requirements.

5259

DELEGATION OF POWERS TO THE GOVERNANCE AND AUDIT COMMITTEE FOR APPROVAL OF THE STATEMENT OF ACCOUNTS 2024/25

The Council considered a report seeking approval for delegated authority to be awarded to the Chair of the Governance and Audit Committee to accept the Statement of Accounts 2024/25 on behalf of the Council (Full Council approval was usually required according to Paragraph 3.9.5 of the Council's updated Constitution).

Councillor C Emmas-Williams moved recommendations 2.1 and 2.2 of the Officer's report, subject to the amendment of the backstop date at the end of paragraph 6.5 to read 27 February 2026 (instead of 2025). This was seconded by Councillor E L Monkman, who thanked the Governance and Audit Committee.

Councillor B R E Bellamy reported that there was no backstop date included at paragraph 6.3 for the financial year 2025/26. He also stated that he was uncomfortable with this proposal as the matter was a function of Full Council.

RESOLVED:

- 1 That Council delegate authority to the Chair of the Governance and Audit Committee to sign the Statement of Accounts (also known as the Financial Statements) for the year ended 31 March 2025, in accordance with the requirements of the Accounts and Audit Regulations 2015, as amended by the Accounts and Audit (Amendment) Regulations 2022, on condition that the Statement of Accounts are first approved by the Governance and Audit Committee; and
- 2 That following approval by the Governance and Audit Committee, a report on the Statement of Accounts be received by Full Council.

REASON FOR DECISIONS:

To facilitate the statutory requirement for the Council to approve its annual Financial Statements in accordance with the revised backstop timetable introduced by the Government in July 2024.

5260 TO ANSWER QUESTIONS PURSUANT TO COUNCIL PROCEDURE RULE 11(4)

1. Councillor B R E Bellamy put the following question to Councillor C Emmas-Williams, Leader of the Council and Cabinet Member for Policy and Organisational Transformation:

“Does the Leader agree that the revelations that Grok AI, the AI function for X (formerly known as Twitter) is being used to make sexualised and nude images of women and children which X publishes on its page are outrageous, and does he agree that this Council should immediately delete its X account and remove itself from the X platform?”.

Councillor C Emmas-Williams replied “I totally agree that the use of Grok AI or any other platform to produce sexualised images of anybody is not only outrageous but disgusting as well. Since we took control of the Council, I have a four weekly meeting with our Communications and Performance Manager, where we discuss all our communications issues. The Council stopped daily posting on X in 2021. In March 2025, after further review, rather than deleting the Council’s X account, we now just retain it in case there is a need to share information during emergencies and public safety messages only to 4,000 followers. Since then, our usage has been limited to flooding and severe weather warnings, but I can assure Members that if anything changes, we’ll review its usage.

No supplementary question was raised.

5261 URGENT BUSINESS

The Mayor confirmed that no urgent business had been received which by reason of special circumstances should be considered as a matter of urgency.

The meeting closed at 7:37 pm.